throughout the country, obviously you do not have to change the provisions of the Constitution.

As the Prime Minister also hinted in his speech, there is the possibility of extending the operation of such wide powers to bona fide cases and thereby abuse the power given. Now what is the guarantee that these provisions will not be so abused? If you say public order, Parliament does not administer. Parliament passes laws. If you say anything that offends public order then I may state that public order is an expression which is capable of the widest possible definition. You can utilize it in penalizing your political opponents. The Prime Minister said something about the legal profession not being dynamic and remaining static and preventing all sorts of things. Now it is rather strange that a member of the legal profession who happens to be a Judge of the Supreme Court in the case of Romesh Thapar, while dealing with the provisions for maintenance of the civil life of the citizen under the Constitution of India, said these memorable words:

> Thus, very narrow and stringent limits have been set to permissible legislative abridgement of the right of free speech and expression, and this was doubtless due to the realisation that freedom of speech and of the press lay at the foundation of all democratic organisations, for without free political discussion no public education, so essential for the proper functioning of the processes of popular government, is possible. A freedom of such amplitude might involve risks of abuse. But the framers of the Constitution may well have reflected, with Madison who was ‘the leading spirit in the preparation of the First Amendment of the Federal Constitution’, that ‘it is better to leave a few of its noxious branches to their luxuriant growth, than, by pruning them away, to injure the vigour of those yielding the proper fruits’.

Here was a Judge – an Indian Judge – appointed by the same Government, which is in power today, Mr Justice Patanjali Sastri, who has interpreted the Constitution not to prove himself a man who did not know what dynamic growth was but one who gave a noble interpretation to our own Constitution for the protection of the liberty of the Indian subjects. Whether the Legislature, Parliament or Government would agree with the Supreme